

Court No. - 30

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4218 of 2018

Applicant :- Ramashrey

Opposite Party :- Chandresh Upadhyay

Counsel for Applicant :- Yashwant Singh

Hon'ble Vivek Kumar Birla,J.

Heard learned counsel for the applicant.

The present contempt application has been filed for punishing the Opposite Party for willful disobedience of the judgment and order dated 28.2.2018 passed by this Court in Writ Petition No.7104 of 2018 (Ramashrey vs. State of U.P. and others), wherein this Court has observed as under:-

"Having heard the learned counsel for the parties present and perused the impugned order dated 29.8.2017 and 3.11.2017, we do not find any reason to quash the same. However, we dispose of the writ petition with direction to the respondent no. 2 to decide the objection filed by the petitioner before him under clause 6.5 of the Electricity Supply Code 2005 on 13.2.2018, copy whereof has been brought on record as Anneuxre-13 of the writ petition as expeditiously as possible preferably within a period of six weeks from the date of production of certified copy of this order"

It is stated that in spite of service upon the opposite party, no order has yet been passed.

Prima facie, a case has been made out for punishing the opposite party for willful disobedience of the judgment and order dated 28.2.2018 passed in the aforesaid writ petition.

However, no notice is issued to the opposite party at this stage. The opposite party no. 1 is granted two months further time to comply with the judgment and order dated 28.2.2018 passed by this Court in Writ Petition No.7104 of 2018 from the date of receipt of certified copy of this order.

In case, the opposite party does not comply with the order, it would be open to the applicant to approach this court again.

With the aforesaid observations, this application is finally disposed of at this stage.

Order Date :- 14.8.2018

AKJ